

Rules Issued Under Sections 36 and 39 of the Chennai City Police Act, 1888

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State of Tamilnadu- Act

Rules Issued Under Sections 36 and 39 of the Chennai City Police Act, 1888

TAMILNADU

India

Rules Issued Under Sections 36 and 39 of the Chennai City Police Act, 1888

Rule RULES-ISSUED-UNDER-SECTIONS-36-AND-39-OF-THE-CHENNAI-CITY-POLICE-ACT-1888 of 1888

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Rules Issued Under Sections 36 and 39 of the Chennai City Police Act, 1888

(Rules For Providing Safety and Convenience At All Places of Public Entertainment or Resort In The City of Chennai)

In exercise of the powers conferred by sections 36 and 39 of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Police Act, 1888 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act III of 1888), and in supersession of all previous rules and orders on the subject, the Commissioner of Police, [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
with the approval of his Excellency the Governor of [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

is hereby pleased to make the following rules for ensuring order and decency and for the public safety at all places of public entertainment or resort in the City of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

: -

Part I ? 1.

In these rules, -

(i)

"the Act" means the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
City Police Act, 1888 ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Act III of 1888);

(ii)

"Commissioner" means the Commissioner of Police, [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

;

(iii)

"Electrical Engineer" means the Electrical Engineer of the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

;

(iv)

"Engineer" means the Engineer of the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

;

(v)

"Fire Master" means the Officer in-charge of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996)]

City Fire-Bri-gades;

(vi)

"Health Officer" means the Health Officer of the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

;

(vii)

"permanent building" means a building which is constructed for permanent use with stone, mud, brick, mortar, cement or other non-inflammable material.

Explanation. - Where the floor, side-walls, galleries and staircases of a building are made on non-inflammable material, the building shall, for the purposes of these rules, be deemed to be a permanent building;

(viii)

"prescribed" means prescribed by order of the Commissioner;

(ix)

"temporary buildings" means a building which is not a permanent building.

Part II ? Permanent Buildings

2.

No licence shall be granted under the Act for the use of any permanent building for public entertainment or resort unless.

(a)

the building is provided on at least three of its sides with an open space of not less than 20 feet in width or such greater

width as may be required by the Commissioner on the recommendation of the Health Officer;

(b)

the eaves of the building have a height of not less than ten feet;

(c)

every doorway in the building is not less than eight feet in height and not less than five feet in width; and

(d)

the windows of the building are of such dimensions and number and in such situations as may be required by the Commissioner on the recommendations of the Health Officer and the aggregate area of all the windows in each of the places to which the public are admitted is not less than one-tenth floor area thereof:

Provided that the Commissioner, in consultation with the Health Officer, may -

(i)

permit the use of extractors or other artificial means of ventilation to provide for a sufficient supply of fresh air in the building in lieu of all or any of the windows required under clause (d); or

(ii)

require such extractors or other artificial means of ventilation to be provided in addition to the windows required under the said clause.

3.

Every person who may have obtained a licence under the Act for the use of any permanent building for public entertainment or resort shall cause all windows and other means of ventilation in the building to be maintained in good order and efficient action during the period such building is used for public entertainment or resort and for at least two hours before and for half an hour after such use.

4.

The Commissioner may relax the conditions in rules 2 and 3 on the recommendation of the Health Officer.

5.

The licensee shall cause the flooring of every part of such building to be paved or otherwise made impervious and damp-free and shall keep such flooring, at all times, in good order and repair and shall disinfect it at such times and in such manner as may be prescribed on the recommendation of the Health Officer.

6.

The licensee shall not permit any sand or such other dusty material to be spread on any part of the floor of such building to which the public are admitted.

7.

The licensee shall cause the carpets, matting or any other material used as a covering for the floor to be cleaned and dusted at least once daily.

8.

The licensee shall cause all open spaces in the licensed premises to be paved or gravelled to the satisfaction of the Commissioner.

9.

The licensee shall cause the walls of the building to be hotlime or to be painted once in every two years or more often if so prescribed on the recommendation of the Health Officer.

10.

The licensee shall cause the premises to be thoroughly cleansed and all refuse matter to be removed at least once in every 24 hours or more often if so prescribed on the recommendation of the Health Officer.

11.

The licensee shall provide suitable means of drainage to the building and also sanitary convenience of such description and design as may be prescribed on the recommendation of the Health Officer for exclusive use of person of each sex according to the scale shown in Appendix I and shall cause the same to be maintained in good order and sanitary conditions.

12.

The licensee shall, where a continuous supply of piped water is available, provide such number of water taps and in such places, as may be prescribed on the recommendation of the Health Officer.

13.

The licensee shall, where a continuous supply of piped water is not available, provide drinking water in such places, in such manner and in such quantity, as maybe prescribed on the recommendation of the Health Officer.

14.

The licensee shall provide spittoons of such description in such number and in such places, as may be prescribed on the recommendation of the Health Officer.

14A.

The licensee shall not permit or suffer smoking within the auditorium during matinee show or performance of any cinematograph exhibition or drama. The licensee shall put up boards at prominent places within the building deprecating smoking within the auditorium.

Explanation. - For the purpose of this rule, "auditorium" means such, portion of the building in which accommodation is provided for the public to view such exhibition performance.

Part III ? Temporary Building and Enclosures

15.

No licence shall be granted under the Act for the use of any temporary building or enclosed place for public entertainment or resort unless.

(a)

it is provided on all sides with an open space which in no part less than four feet in width:

Provided that the Commissioner may, on the recommendation of the Health Officer, grant a licence where the open space is not less than 20 yards in width;

(b)

its eaves have a height of not less than eight feet; and

(c)

every doorway in it is not less than six feet in height and not less than four feet in width.

16.

Every person who may have obtained a licence under the Act for the use of any temporary building or any enclosed place for public entertainment or resort shall provide suitable and efficient means of ventilation for such building or place and shall cause the same to be maintained to the satisfaction of the Health Officer. There shall be ventilators or means of ventilation equal in length to at least half the total length of the building.

17.

The licensee shall cause every part of the licensed building or place to be maintained in proper sanitary condition.

18.

The licensee shall provide such sanitary conveniences as may be prescribed on the recommendation of the Health Officer for the exclusive use for persons of each sex according to the scale laid down in Appendix I and shall cause the same to be maintained in good order and sanitary conditions.

19.

The licensee shall provide a sufficient supply of wholesome drinking water for the use of persons employed in or frequenting such building or place, in such situations, in such manner and in such quantity as may be prescribed on the recommendation of the Health Officer.

20.

If there is a fence outside the building or enclosure, it shall be at least 10 feet away from such building or enclosure. No barbed wire shall be used for fencing.

21.

In the case of fairs and festivals, no booth shall be longer than 60 feet and no booth shall be closer to any other booth than 10 feet. No fence shall be nearer any booth than 10 feet.

22.

The exits for any enclosure where there is a collection of booths or which is reserved for the accommodation of a particular class or persons shall, in no case, be farther apart than 200 feet.

Part IV ? General

23.

(1)

Licences granted under the Act shall be either annual or temporary.

(2)

Temporary licences may be granted for the period not exceeding three months at a time.

(3)

For periods not exceeding two weeks at a time, a special temporary short-term licence may be granted in respect of a building or enclosed premises where the total number of persons to be accommodated at any one time does not exceed one thousand.

(4)

Annual licences shall be granted only in respect of permanent building.

(5)

Temporary licence including special, temporary, short-term licences only may be granted in respect of temporary buildings, but may be granted in respect of permanent buildings if they are required only for occasional use as places of public entertainment or resort.

(6)

In respect of walled enclosures which have no roof or superstructure, either annual or temporary licences may be granted.

(7)

Any licence granted may be renewed at the discretion of the Commissioner:

Provided that in the case of the temporary short-term licences, such renewal may be permissible only if the rules in this Part have been complied with.

24.

In the event of an outbreak of an epidemic or contagious disease in the locality, the Commissioner may, by order, direct that any building or enclosed place in respect of which a licence has been granted under the Act shall not be used for the purposes of public entertainment or resort for such period as may be specified in the order, if in the opinion of the Health Officer, such use is likely to spread the epidemic or contagious disease. The Commissioner shall also have power to refuse to grant a licence in similar circumstances.

25.

For every licence granted under the Act, there shall be charged a fee of two rupees:

Provided that the fee chargeable for a temporary licence in respect of a building or enclosure (which) is used by day and without lights, shall be only one rupee.

25A.

Every application for the grant of renewal of a licence shall be accompanied by a Government treasury receipt for the payment of fees at the prescribed rates.

In the case of refusal of the grant of renewal of a licence, one-half of the fee collected shall be refunded to the applicant, provided that the application for such refund is made by the applicant within one month from the date of receipt of the order of rejection of his application for grant of renewal of licence.

26.

Every licence granted under the Act shall be in the Form in Appendix II.

27.

(1)

Every application for a licence shall be in duplicate and shall be made to the Commissioner in the Form in Appendix III and shall be accompanied by complete plans, elevations and sections in duplicate of the premises and all erections or buildings thereon drawn correctly to a scale not less than one-eighth of an inch to a foot and a block plan in duplicate on a separate sheet showing the position of such premises in relation to any adjacent premises and the public thoroughfares.

(2)

Every application for a licence (other than a licence for a cinema) or for its renewal shall be referred by the Commissioner to the Health Officer, the Engineer and the Electrical Engineer through the Commissioner of the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

. Every application for a cinema or for its renewal shall be referred to the Health Officer only through the Commissioner of the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

. The Executive Engineer, Public Works Department shall certify every year the structural soundness of cinema premises.

(3)

No licence under the Act shall be granted unless any licence or permission required under the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Municipal Act, 1919 [(Tamil Nadu Act IV of 1919)]

[Now, it is called as Chennai City Municipal Corporation Act, 1919 (Tamil Nadu Act IV of 1919).]

, shall have been obtained.

(4)

Persons applying for boxing entertainment licence shall furnish full particulars of such entertainment to the Commissioner of Police at least 21 days prior to the date on which the entertainment is to take place, including the names of the Referees, Judges, Competitors, Assistant Surgeon, Time-keeper and Clerk or Official-in-charge of boxers.

(5)

The Commissioner of Police shall, before the first day of April in each year, in consultation with the Boxing Associations, prepare a list of persons who are considered suitable to serve as Judges and Referees for boxing entertainments, having regard among other things, to their social and financial status, character and education.

(6)

Persons applying for licences shall furnish to the Commissioner of Police full particulars of the entertainment together with full synopsis of any drama to be performed, in the case of temporary licences, at least 21 days prior to the date on which the entertainment is to take place and in the case of special temporary short-term licences, at least 10 days prior to such date.

28.

(1)

No licence shall be granted under the Act in respect of any building or enclosure unless the provisions of sub-rules (2) to (8) are complied with.

(2)

Inside the building, there shall be gangways or passages all round and at such other place and of such width, not less than four feet, as may be determined by the Commissioner. Such gangways and passages shall, at all times, be kept clear.

(3)

If there are galleries in the building, they shall be strongly built to the satisfaction of the Engineer. The stairs or approaches to such galleries shall be at least 4 feet in width. There shall be at least two staircases or approaches to each gallery and if the sitting capacity of the gallery is more than 500, there shall be one extra staircase or approach for every additional 250 persons accommodated in the gallery. The seating arrangements in such galleries shall be divided into blocks by gangways running from the front to the rear and across the building of such width, not less than four feet and at such intervals not more than 30 feet apart, as may be determined by the Commissioner. Such gangways shall, at all times, be kept clear. Parapets or rails shall be at least 3 feet high. If the main seating accommodation is situated on any floor other than the ground floor, the requirement in respect of seating arrangements and provision of stairs or approaches shall be the same as for the galleries.

(4)

(a)

The licensee shall not permit a greater number of persons to be accommodated in the building than the number prescribed. Such number shall not exceed that arrived at by calculating at the rate of 20 persons per 100 square feet of floor area in respect of such portions as are provided with chairs having backs and arms, and at the rate of 25 persons per 100 square feet of floor area in respect of other portions after excluding the area of the entrances, the passages and gangways, the stage, the staircases and all places to which the public are not admitted.

(b)

The licensee shall cause a board to be hung in a prominent place in the licensed premises, the maximum number of persons who can be accommodated in the building under these rules:

Provided that when more than one class of accommodation is provided in the premises, the maximum number of

persons who can be accommodated in each class shall be indicated by means of a board or otherwise.

(c)

The licensee shall provide separate and reasonably sufficient accommodation for women.

(d)

The following provisions shall be observed in providing seating accommodation: -

(i)

Chairs shall be battened together in complete lengths.

(ii)

In all cases, there shall be an intervening space at least one foot between the back of one seat and the front of the seat immediately behind it, measured between perpendiculars.

(iii)

No seat shall be more than ten feet from a gangway.

(iv)

The seating accommodation in every building shall be so arranged as not to interfere with free access to the exits, gangways, passages leading to exits and staircase. All such gangways, passage and staircases shall, during the presence of the public in the building, be kept free from obstruction.

(5)

Such building or place shall have at least two main exits of not less than eight feet in height and not less than six feet in width. Where these exits are closed by doors, the doors shall be so made as to open outwards. Such exits shall be so arranged that they can be pushed open easily and at once from inside.

(6)

When the area of such building or place exceeds 1,000 square feet, at least one additional special exit per 500 square feet of additional space shall be provided in the exterior walls of such building or place of suitable distances. Each of such special exits shall be eight feet in height and not less than eight feet in width. Such special exits may be closed whilst such building or place is being used as a place of public entertainment or resort, but the means adopted for using them, in cases of emergency, shall be specified in item 5 of the licence. The special exits may be made of covered or closed by mat, screen, tatties on split bamboo frames and fastened by twine, or similar material which can be removed by a slight pressure from inside the building:

Provided that where the building or enclosed place is not an entirely roofed or covered structure as in sports stadiums, the number of special exits may with the permission of the Commissioner, be provided at the rate of not less than one special exit for every 500 persons prescribed as the maximum seating capacity under these rules.

(7)

Every exit including the additional special exits referred to in sub-rule (6) shall be indicated by a board on which shall be painted in large and legible letters the word "Exit" and its equivalent in Tamil or Telugu.

(8)

The licensee shall provide ample space for parking at least 25 motor cars or 50 motor cycles and 200 cycles or 20 motor cars, 5 motor cycles and 100 cycles and employ watchman at the rate of one for every 25 cars or 50 motor cycles and 200 cycles or 20 motor cars, 5 motor cycles and 100 cycles.

The Commissioner may, when special circumstances require, insist on any applicant to provide space for parking of more than 25 motor cars and other vehicles and to provide watchmen to look after the vehicles in the interest of the public.

Every person who has obtained a licence under this Act for the use of any building or enclosed place for public entertainment or resort may collect fees for parking of motor cars and vehicles in the space provided thereof at the rates indicated below: -

(i)

Motor vehicles, including motor cycles..... 12 naye paise.

(ii)

Vehicles other than motor vehicles..... 6 naye paise:

Provided that such fees shall not be charged where the owner has his own driver or attendant to look after the vehicle.

29.

(1)

The licensee shall, except when the licensed building is used in day time and no artificial lighting is required, provide suitable lighting therein and the open space attached thereto.

(2)

When electricity is used to illuminate the premises or for other purpose, the electric wiring shall be armoured or put in metal conduits so as to render it safe from risk of fires by short circuit.

(3)

Ordinarily no open or naked lights or fires shall be allowed but if the nature of performance or exhibition absolutely necessitates their use, this fact shall be mentioned in the application and special permission for their use obtained. All swinging lights shall be suspended by metal wires or rods.

(4)

In the case of a temporary building, the licensee shall not permit or suffer -

(a)

any light to be affixed to the side walls or posts of such building or place; or

(b)

any light to be placed within five feet of the walls or roof of such building or place; or

(c)

any firework to be ignited by his servants within 100 yards of any part of the outer walls or fencing of such building or place; or

(d)

smoking within such building or place.

30.

The Commissioner may refuse a licence if the building is constructed a whole or in part of a material which is in his opinion is inflammable as to be a public danger or if in his opinion any portion of the building is dangerously near to any other building.

31.

Every building or place for which a licence is granted shall be in communication with the fire brigade by telephone which shall be fitted in such place and manner as the Commissioner may direct.

32.

(1)

The licensee shall provide water for fire-fighting purposes at the rate of five gallons per 100 square feet of the total area of the building. Not less than 33 percent of the water shall be stored in fire buckets of two or three gallons capacity each and hung in a convenient and accessible position inside the building, but so as not to cause obstruction. The buckets shall be painted red with the word "fire" in four inch letters painted black. The balance of the water shall be stored in tanks, cisterns, well or ornamental ponds outside the building, but adjacent to it so as to be easily accessible.

(2)

A sufficient number of two gallons Soda Acid Type of Fire Extinguishers, but not less than four, shall be installed in a convenient position on the walls at adequate height and shall be tested by discharge every six months and subjected to a hydraulic pressure test of 300 lb. per square inch annually, provided that they need not be required to withstand a pressure exceeding 280 lb. per square inch until the 21st March 1950. The date of test by discharge shall be painted conspicuously on the extinguishers. The number of such fire extinguishers to be installed in excess of four shall be decided by the Inspecting Fire Officer, according to the area of the building and any special fire risk. The licensee shall cause to be installed at his expense any other type of fire extinguishers in addition to the above as may be recommended by the Inspecting Fire Officer, to provide against any special fire risk.

(3)

The licensee shall provide, in special circumstances, hydrants connected to the Corporation water mains. The number required and their location will be decided by the Inspecting Fire Officer.

(4)

The licensee shall maintain at his cost in or near the premises such number of fire engines and crew as may be prescribed on the recommendation of the Inspecting Fire Officer.

33.

Every licence granted under the Act shall be subject to the following additional conditions: -

(1)

No inflammable or explosive substance, such as petroleum, kerosene oil, fireworks, or gunpowder, in excess of the quantity required for one day's use shall be stored upon or within the licensed premises.

(2)

The main doors, enumerated in item (5) of the licence shall always be left unfastened and unobstructed whilst the public are using the licensed premises.

(3)

No structural or material alteration shall be made in the licensed premises except with the written permission of the Commissioner.

(4)

No leper and no person suffering from an open sore or any loathsome infections or contagious disease shall be permitted inside the licensed premises. If any such person is found in any such premises, the licensee shall immediately report the fact to the Health Officer or to the Commissioner and the licensee shall, at his own cost, take such steps as may be required by the Health Officer or Commissioner to disinfect the place to prevent the further spread of infection.

(5)

The licensed premises shall not be kept open after 1-30 a.m. on any day without obtaining special permission in writing from the Commissioner in respect of such day.

(6)

The licence shall not be transferred except with the permission of the Commissioner.

(7)

No person, other than the licensee or manager or the person in charge named in the licence, shall carry on any exhibition, performance, or other business in the place or building without the permission in writing of the Commissioner.

(8)

The Commissioner of the Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Naitie) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, the Health Officer, the Engineer and the Electrical Engineer or any officer of the Corporation authorised by them and any Police Officer deputed to keep order while the licensed premises are being used as a place of entertainment or resort shall, at all times, have free access to the said premises to see whether the conditions of the licence are observed. Nothing contained in this condition shall apply to cinema premises.

(9)

The Commissioner may add such other conditions not inconsistent with these rules to the licensee as may deem desirable in the interest of the health or safety of the public.

(10)

Nothing in these conditions shall be construed as affecting the ordinary powers of Police-officers under the Act.

(11)

The licensee shall, so far as lies in his power, comply with any suggestion or instruction which may, from time to time, be given by the Commissioner or by any Police-officer acting on his behalf for the public safety and convenience or for the preservation of the public peace.

(12)

No game of chance shall be allowed to be conducted within the licensed premises.

(13)

The Commissioner may, for reasons to be recorded in writing, revoke or suspend the licence when he has reason to believe -

(a)

that the licence has been fraudulently obtained; or

(b)

that the enclosed place, or building has been used for other purposes of public resort or entertainment than that for which the licence was granted; or

(c)

that the place or building can no longer be safely used for the purpose for which the licence was granted.

(14)

The licence shall be subject to cancellation for breach of any of these rules or any of the conditions of the licence.

34.

The Commissioner may, in consultation with the Commissioner of the Corporation of [Chennai] [Substituted for the word 'Madras' By the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).] or with the approval of the State Government, relax any of the provisions of these rules or the conditions of any licence issued under these rules.

Part V ? Special, Temporary, Short-Term Licences

35.

Notwithstanding anything to the contrary in the foregoing rules, temporary, short-term licences may be granted subject to the provisions in the following rules.

36.

The licensee shall not permit a greater number of persons to be accommodated than the number prescribed which shall not exceed 1,000 and which shall be determined by calculating at the rate of 20 persons per 100 square feet of floor area in respect of such portions as are provided with chairs having backs and arms, and at the rate of 25 persons per 100 square feet of floor area in respect of other portions, after excluding the area of the entrances, the gangways and passages, the stage, the staircases and all places to which the public are not admitted.

37.

There shall be at least two main exits of not less than eight feet in height and not less than six feet in width, where the total accommodation fixed under rule 36 is for more than 500 persons and of not less than six feet in height, and less than four feet in width, when the total of accommodation fixed is for less than 500 persons.

38.

Where the area of the building or place exceeds 1,000 square feet at least one special exit per 500 square feet of additional space shall be provided at suitable distances. The special exit or exits shall be total of 48 square feet for every 500 square feet of additional space.

39.

The licensee shall take all fire precautions as are required by rule 32 (1) of these rules.

40.

The premises shall be kept in a clean and sanitary conditions and a building or a roofed enclosure, shall be sufficiently ventilated for the maximum accommodation provided.

41.

There shall be an open space of not less than 20 yards in width all round the building or enclosure.

42.

(1)

The licensee shall, except when the licensed building is used in day time and no artificial lighting is required, provide suitable lighting therein and the open space attached thereto.

(2)

When electricity is issued to illuminate the premises or for other purposes, the electric wiring shall be armoured or put in metal conduits so as to render it safe from risks of fires by short circuit.

(3)

Ordinarily no open or naked lights or fires shall be allowed but if the nature of the performance or exhibition absolutely necessitates their use, this fact shall be mentioned in the application and special permission for their use obtained. All swinging lights should be suspended, by metal wires or rods.

(4)

In the case of a temporary building, the licensee shall not permit or suffer -

(a)

any light to be affixed to the side walls or posts of such building or place; or

(b)

any light to be placed within five feet of the walls or roof of such building or place; or

(c)

any firework to be ignited by his servants within 100 yards of any part of the outer walls or fencing of such building or place; or

(d)
smoking within such building or place.

43.
Every such short-term licence shall be, subject to the following additional conditions, namely: -

(1)
The Commissioner may, for reasons to be recorded in writing, revoke or suspend the licence when he has reason to believe -

(a)
that the licence has been fraudulently obtained; or

(b)
that the enclosed place or building has been used for other purposes of public resort or entertainment than that for which the licence was granted; or

(c)
that the place or building can no longer be safely used for the purpose for which the licence was granted.

(2)
Such licence shall be subject to cancellation for the breach of any of the rules in this Part or any of the conditions of the licence.

44.
The Commissioner may refuse a licence if the building is constructed in whole or in part of a material which is in his opinion so inflammable as to be a public danger or if in his opinion any portion of the building is dangerously near to any other building.

45.
The licensee shall, so far as lies in his power, comply with any suggestion or instruction which may, from time to time, be given by the Commissioner or by any Police-officer acting on his behalf for the public safety and convenience or for the preservation of the public peace.

[Part VI]

[Part VI (Rules 46 to 48) was added by G.O. Ms.No. 166, Home (Police - D), dated the 1st February 1993.]

Licence To Video Games Parlours

46.
Licence to Video Games Parlour shall be granted by the Commissioner, after considering the objections from the members of the public and upon the conditions that.

(a)
the licensee shall not permit more than three persons, including children, per machine;

(b)
the licensee shall not open the Video Games Parlour before 10.00 a.m. and shall not keep it open after 10 p.m.;

(c)
the licensee shall not allow any child in school uniform below the age of fifteen years to play in the Video Games Parlour except on Sundays and holidays or being accompanied by its parent, from 10 a.m. to 3 p.m.;

(d)
the licensee shall not allow the premises of the Video Games Parlour to be used for the purpose of gambling or betting in any manner;

(e)
the licensee shall not allow any chance machine and chance games such as Good Luck, Poker Games, Skill Ball in the Video Games Parlour;

(f)
a register showing the name, age and address of the person who visits the Video Games Parlour with time of entry and time of exit shall be maintained and kept in the Video Games Parlour for inspection by Police authorities;

(g)
the licensee shall make arrangements for parking of vehicles and there shall not be any obstruction to the traffic;

(h)
the music played in the Video Games Parlour shall not, under any circumstance, be audible beyond fifteen feet;

- (i)
the licensee shall comply with the provisions of the rules relating to building, electrical installations and fire;
- (j)
the licensee shall not permit smoking inside the Video Games Parlour;
- (k)
the premises of the Video Games Parlour shall be provided with reasonable, sufficient number of spittoons in suitable places;
- (l)
the licensee shall keep the premises of the Video Games Parlour clean and in a reasonable state of sanitation;
- (m)
the licensee shall have the licence displayed in the premises of the Video Games Parlour;
- (n)
the licensee shall provide emergency lights in the premises of the Video Games Parlour at suitable places;
- (o)
the licensee shall extend all facilities to the inspection staff and any defects pointed out then and there by them shall be rectified, failing which his licence is liable to be cancelled.

47.

Any Police-officer not below the rank of a Sub-Inspector of Police may enter into the Video Games Parlour during the working hours to check whether there is any contravention or violation of the conditions of licence.

48.

Every notice inviting objections from the members of the public shall be in the Form in Appendix IV and shall be displayed in the premises of the Video Games Parlour and the officer-in-charge of the Police Station shall also make an entry in the station diary regarding such notice. The objection, if any, by a member of the public shall be lodged within thirty days from the date of such display.

Appendix I

(See rules 11 and 18)

Scale of Sanitary Accommodation To be Provided Men

Urinals - For 100 persons one urinal

Latrines - For every 200 persons one water closet.

Women

Same scale as for men.

Appendix II

(See rule 26)

Licence Granted Under Section 34 of The [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Police Act, 1888 For The Use of Enclosed Place or Building For Public Entertainment or Resort

1.

Name of the licensee and place of abode.

2. Name of Manager or person in charge where he is not the licensee.

3. Name of the owner of the place or building.

4. Situation of the place or building.

5. Size and description with number of main doors.

6. Material of which the roof and enclosures are made or proposed to be made.

7. Whether the licence is annual or temporary.

8. Purpose for which it is proposed to be used.

9. Whether the premises are to be used during the day or during the night.

10. Maximum number of persons that may be admitted in each part of the building.

11. Provisions for preventing and extinguishing fire.

12. Provisions for accommodation for parking of motor cars and other vehicles and watchmen to look after them.

13. Special conditions (if any) on which the licence is granted.

14. Period for which licence is to continue in force.

15. Fee paid.

Dated at [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

..... day of 20

(Signed)

Commissioner of Police.

Appendix III

(See rule 27)

Application for A Licence Under Section 34 of The [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Police Act, 1888 for the Use of the Enclosed Place/building for the Public Entertainment or Resort

1. Name of application and place of abode.
2. Name of the owner of the place or building.
3. Situation of the place of building.
4. Size and description of the place or building.
5. Material of which the roof and enclosures are made.
6. Period for which the licence is required.
7. Purpose for which the place or building is proposed to be used.
8. Whether the place or building is to be used during day time without lights or whether it is proposed to be used during day or night with lights.

I do hereby declare that I shall abide by the rules and conditions under which the licence may be granted.

Date:

Place:

Signature of the applicant.

[Appendix IV]

[Appendix IV was added by G.O. Ms.No. 166, Home (Police-D), dated the 1st February 1993.]

(See rule 48)

Whereas Thiru..... Son of.....aged about.....years residing at.....has applied to me for grant of Video Games Parlour Licence for the location of a permanent/temporary premises for use as a place of public amusement, namely, Video Games Parlour at.....

Notice is hereby given that any member of the public having any objection to the grant of a Video Games Parlour Licence as aforesaid should lodge his objection in writing with the under-signed on or before the.....

Commissioner of Police,[Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

.Licensing Authority.

Related AI tags, queries and research notes

Translation